

OLMSTED LOCKS & DAM PORTABLE TOILET CONTRACT

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**SECTION 1
GENERAL**

DESCRIPTION/SPECIFICATIONS

**SECTION 1
General**

1.1. PROJECT INFORMATION

1.1.1. The purpose of this Contract is to provide services at Olmsted Locks & Dam operated by the US Army Corps of Engineers (USACE) – Louisville District. Further descriptions and access procedures are summarized in paragraph 1.27.

1.2. SCOPE OF PERFORMANCE

1.2.1. The Contractor shall furnish all necessary supervision, personnel, materials, supplies, tools, equipment, required to perform all required services at the facility. The services include solid waste removal.

1.3. VETERANS EMPLOYMENT EMPHASIS FOR U.S. ARMY CORPS OF ENGINEERS CONTRACTS

1.3.1. In addition to complying with the requirements outlined in FAR Part 22.13, FAR Clause 52.222-35, FAR Clause 52.222-37, DFARS 22.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) Contractors and Subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE Contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant Contract, USACE Contractors are encouraged to seek out highly qualified veterans to perform services under this Contract. The following resources are available to assist USACE Contractors in their outreach efforts:

- U.S. Department of Labor Veterans employment: www.vets.gov/
- Federal veteran employment information: www.fedshirevets.gov/index.aspx
- Veterans' Employment and Training Service (VETS): <http://www.dol.gov/vets/>
- Veterans Opportunity to Work (VOW) Program: <http://benefits.va.gov/vow/>
- U.S. Army Warrior Transition Command Employment Index: wtc.army.mil/modules/employers/index.html
- Hiring Our Heroes initiative: www.uschamberfoundation.org/hiring-our-heroes

1.4. WORKING HOURS

1.4.1. Normal Working Hours. Normal working hours, except as otherwise specified herein, shall be Monday through Thursday, 7:00 am to 3:30 pm Central Time. Performance inside Government buildings or other secured areas shall be performed during the above referenced work hours.

1.4.2. Holiday Work. The eleven Federal holidays observed are:

- New Year's Day (January 1st)
- Martin Luther King Day (3rd Monday in January)
- President's Day (3rd Monday in February)
- Memorial Day (Last Monday in May)
- Juneteenth National Independence (June 19th)
- Independence Day (July 4th)
- Labor Day (1st Monday in September)
- Columbus Day (2nd Monday in October)
- Veterans Day (November 11th)
- Thanksgiving Day (4th Thursday in November)
- Christmas Day (December 25th)

1.4.2.1. When one of the above designated holidays falls on a Sunday, the following Monday is observed as a legal holiday. When a legal holiday falls on a Friday or Saturday, the preceding Thursday is observed as a holiday. Services shall be scheduled around the above listed Federal holidays except as specified herein.

1.5. CONTRACTOR SUBMITTALS

1.5.1. Unless otherwise specified, the Contractor shall submit the following information to the COR prior to the pre-performance conference for this Contract:

- Quality Control Plan.
- Contractor Quality Control Inspector. List of Quality Control Inspectors.
- Contract Manager. Contact information.
- Accident Prevention Plan (APP). The Contractor's Accident Prevention Plan, ENG Form 6293 must be filled out per EM 385-1-1. Refer to section 7 at the end of the contract, a fillable form will be provided by upon award.
- Emergency Contacts. A prioritized list, including phone numbers, of those persons (normally Contractor Representatives) to call in case of emergencies.
- Operators. A list of names of qualified equipment/vehicle operators, including experience, training and qualification to operate specific equipment.
- Certificate of Insurance – See Section 1.6 for minimum requirements.
- Security Requirements – See Section 1.8.7.

1.6. PERMITS AND LICENSES

1.6.1. The Contractor shall, at their own expense, obtain any licenses or permits required to perform all aspects, requirements, and work under this Contract. The Contractor shall comply with all current Federal, State, and local laws and regulations and shall comply with any subsequent changes. In accordance with FAR 52.28-5 Insurance,- Work on a Government Installation, the contractor shall submit proof of having the following insurance within 10 days after award.

Comprehensive General Liability (Occurrence policy form only)	Amount
General Aggregate	\$2,000,000
Products/Completed Operations	\$2,000,000
Each Occurrence	\$1,000,000
Fire Damage Legal Liability	\$50,000
Comprehensive Automobile Liability (Including Hired Automobile Liability and Non-Owned Automobile Liability)	
Combined Single Limit	\$1,000,000
Employers' Liability Each Occurrence	\$500,000
Policy Limit	\$500,000
Each Employee	\$500,000
Workers Compensation (As required by state law or Federal law)	
Umbrella Liability (Occurrence policy form only)	
Each Occurrence and Aggregate	\$5,000,000

1.7. IDENTIFICATION OF CONTRACT EMPLOYEES AND VEHICLES

1.7.1. Employees must wear pants, shirt with at least sleeves equivalent of a t-shirt, and. Contractor name shall be visible on shirts. Vehicles shall be maintained in accordance with federal, state, and local laws and display Contractor name.

1.8. SAFETY AND SECURITY REQUIREMENTS

1.8.1. The Contractor shall comply with the Occupational Safety and Health Act (OSHA), the Corps of Engineers Manual, [Safety and Occupational Health Requirements \(army.mil\)](https://www.army.mil/eod/corps-engineers/safety-requirements) (copy and paste the link) and as otherwise stated herein. Special attention shall be given to the requirements for safety meetings.

1.8.2. Accident Prevention Plan (APP). The Contractor shall submit to the COR an Accident Prevention Plan within 30 days of contract award. This plan must be accepted by the safety office to commencement of any services. One copy of the Accident Prevention Plan shall be provided to COR one week prior to the pre-service conference, a fillable ENG 6293 form will be provided to the contractor, please utilize original ENG Form 6293 electronic form. Please do not photocopy and scan in document to make edits for submission. The Accident Prevention Plan must be in the outline and form prescribed in EM 385-1-1 dated 15 March 2024. https://safe.menlosecurity.com/doc/docview/viewer/docN54544F89068D9106ba7303fc01a5264571fa56aeb3148f57_9f8da39392f932edee7df554673e

1.8.3. Activity Hazard Analysis (AHA).

1.8.3.1 The Contractor shall prepare and use an AHA as one of many tools to insure safe performance of work. It is the Contractor's responsibility to prepare the AHA per the APP for each definable feature of work to include meeting EM385-1-1 (2-6.d) AHA Minimum Requirements. The AHA shall be reviewed and accepted by the COR/COR prior to commencement of work. All on-site employees shall review the approved AHA prior to performing work at the site. The Contractor can utilize non-mandatory ENG Form 6206 AHA and can be provided to the contractor if needed.

1.8.3.2. Public Safety. The Contractor shall ensure that reasonable precautions are taken to protect the public at all times where services are being performed. The Contractor shall immediately report to the POC any potential hazards found by their employees on the project. The Accident Prevention Plan shall include procedures to be taken to provide for public safety. Additionally, the Contractor shall not allow any persons, except employees, into areas that are not otherwise open to the public; nor shall the Contractor transport in Contractor vehicles any persons, except employees, during times the Contractor is on the project performing services.

1.8.4. Personal Protective Apparel and Equipment. Protective apparel and equipment, as identified in the AHA, shall be used to eliminate or minimize hazards to personnel. As a minimum, each employee shall wear a short-sleeved shirt, long trousers, and steel toed footwear during all Contract service. Face shields, spectacles with side-shields, or goggles, and hearing protection shall be worn by employees when required by safety manual. Contractor personnel involved in handling or application of pesticides or herbicides shall use all protective apparel per manufacturer's recommendations. Fire extinguisher(s) and first aid kit(s) meeting the Safety Manual standards shall also be provided and easily accessible to all employees.

1.8.5. Contractor Employees Certified in First Aid & CPR. The Contractor shall schedule employees, so the appropriate numbers of certified personnel are on duty to administer First Aid and CPR as required by the Safety Manual. Copies of their certification shall be provided in accordance with regulations. Two people per crew shall be trained in First Aid and CPR. Individuals performing services alone shall be trained in First Aid.

1.8.6. Hazard Communication Program. The Contractor shall be responsible for implementing a hazard communication program for Contractor employees, as required by the Safety Manual. The Contractor shall provide Material Safety Data Sheets (MSDS) or Safety Data Sheets (SDS) for review by the safety officer prior to use of any hazardous substance on the project and provide a plan for the proper handling, transportation, storage and usage of hazardous substances on the project.

1.8.7. Required Security Training and Planning.

1.8.7.1. General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor (“Contractor”) and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Requiring Activity (RA) representative, or Contracting Officer (if a RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as “RAMs”), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

1.8.7.2. Physical Security and Access Control Requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as “NCIC-III”) and Terrorist Screening Database (commonly referred to as “TSDB”). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

1.8.7.3. Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say Something) : All contract personnel granted access to DoD Facilities, shall review the iWatch Army Watch Brochure on the suspicious activity reporting program. This brochure provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

1.8.7.4. Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov/>) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

1.8.7.5. Supplemental Security Requirements- All Contractors and subcontractor employee(s) working on this contract who require access to any Louisville District Lake Projects and Lock and Dam Projects shall receive authorization to be on site at these facilities based upon a favorable background investigation in accordance with “Homeland Security Presidential Directive 12: Policy for a Common Identification Standard for Federal Employees and Contractors” (HSPD 12). The Louisville District Security Management Office shall submit contractor(s) personal information to complete the basic background investigation in order to make a recommendation to the Contracting Office of an employee’s suitability for work on Government property. The Procuring Contracting Officer (PCO) has the right to deny any contractor or subcontractor employee from working on the contract based upon the results of the background investigation provided by the Louisville District Security Office. The Government, Contractor, and subcontractors shall not permit any employee(s) access to drawings, blueprints, records, photos, sites, or projects until the Louisville District Security Management Office has completed an Operations Security (OPSEC) review of such items and determined they can be released.

1.8.7.6 For All Louisville District Contracts: Contractors shall submit a complete investigation packet for each contractor and subcontractor employee to the Louisville District Security Management office within 10 working days after award of any contract, or prior to the individual being permitted access to Louisville District facilities. The Contractor must also provide the following: (1) Name of the Contract Specialist with whom he/she is working, (2) Project Name, (3) Contract Number (4) Task Order Number when applicable, and (5) US Citizens Security Access Form each employee working on site must have a background investigation form submitted directly to the Louisville District Security Office. The Contractor must provide a full legal name, complete SSN#, Date of Birth, Place of Birth (City and State) and Driver’s license number if available. It is the Contractor’s responsibility to ensure the above information is accurate and legible, otherwise delays may occur. Contractors shall have background checks completed for their employees annually in the case of Contracts with an initial period of performance (POP) greater than 1 year and those Contracts with Options or Modifications Which Extend the POP beyond 1 year. For instance, if the employee was cleared in May of 2022, they shall be cleared again in May of 2023. It is the Contractor’s responsibility to ensure that each employee’s security is up to date. Failure to comply may lead to possible removal from the project/job site. The Contractor must ensure if new employees are brought in to work on an existing Contract with the U.S. Army Corps of Engineers (USACE), they must process the employee through the Louisville District USACE Security Office for background purposes.

1.8.7.7 For Contractor Requiring DOD Common Access Cards (CAC) -The documents listed below are required: SF 85, Questionnaire for Non-Sensitive Positions (see <http://www.opm.gov/forms/> to print form). Fingerprints are captured electronically at the closest Army Recruiting Station to the contractor’s home of record or at the USACE, Louisville District Security Office. Contractor shall report any changes in personnel, or at any time conditions change at least 5 working days prior to individual(s) need to have access to the site. The Contractor shall provide the same information as listed above for all new employees. Following submission of paperwork, the Louisville District Security Office will conduct an initial criminal check based upon the information provided. If there are no issues, the Louisville District Security Office will make recommendations to the PCO or their Designated Representative. The Louisville District Security Office cannot give approval due to unfavorable report(s). The Louisville District Security Office shall coordinate with Office of Counsel and will jointly make recommendations to the PCO and/or the Designated Representative should a background investigation come back with derogatory information. The PCO will make the determination whether to allow the Contractor personnel to work on the site based on Security and Office of Counsel recommendations, and the PCO will advise the Contractor of the decision.

1.8.7.8 Foreign Nationals - The Contractor shall provide the package listed above, as well as additional materials noted below for all Foreign Nationals. The Contractor is to expect additional time in the approval process for all Foreign Nationals due to the level of review and elevation of the review to Headquarters staff to complete. All Foreign Nationals must comply with the following paragraph: In accordance with Engineering Regulation 380-1-18, “Technology Transfer, Disclosure of Information and Contacts with Foreign Representatives” dated 1 August 1996, Section 4, all foreign nationals who work on Corps of Engineers’ contracts shall be approved by the Headquarters US Army Corps of Engineers (HQ USACE) Foreign Disclosure Officer before beginning work on this contract; this regulation includes subcontractor employees. The Contractor shall submit to the Security Management Office, the names of all foreign nationals proposed for performance under this contract, along with documentation to verify legal admittance into the United States. Such documentation shall include at least one of the following: a U.S. passport, Certificate of U.S. Citizenship (INS Form N-560 or N-561), Certificate of Naturalization (INS Form N- 550 or N-570), Alien Registration Card with photograph (INS Form I-151 or I-551), Employment Authorization Card (INS Form I-688A), etc. In order to assure forms are properly completed, and to minimize time delays, the Contractor is encouraged to work closely with the Louisville District Security Office. The Government will return for correction incomplete forms, illegible forms, etc. which will delay the contractor / subcontractor from beginning work. Security requirements are subject to change in accordance with HSPD-12, Office of Personnel Management, regulation, or policy changes, etc. The Government shall add any changes to security requirements by modification to the contract. The Contractor shall contact the Louisville District Security Office by phone, letter, or email at the following numbers/addresses:

CELRL-SM

600 Martin Luther King Jr. Pl Louisville, KY 40202

Primary Email: DLL-CELRL-Security-SM@usace.army.mil

Alternate (if no response in 72 hours):

James R. Milner, phone (502) 315-6916; James.R.Milner@usace.army.mil

Jason Almodovar, phone (502)315-6754; Jason.Almodovar@usace.army.mil

Pre-screening of contractor candidates via E-verify Program: The Contractor must pre-screen candidates using the E-verify Program (<http://www.uscis.gov/e-verify>) website to meet the established employment eligibility requirements. The Vendor must ensure that all contractors working on this contract have two valid forms of Government issued identification prior to entering the information in E-Verify. The vendor must ensure the correct information is entered into the E-verify system. An E-Verify verification sheet for each verified/eligible contractor candidate, working on this contract, must be provided to the POC no later than 3 business days after the initial contract award. (The purpose of using E-Verify is to ensure all contractors are U.S. citizens or documented foreign citizens with authority to work in the United States of America). The POC will forward the verification sheets to the USACE, Chicago District Security Office for validation.

1.9. ACCIDENT REPORTING.

1.9.1. The Contractor shall maintain an accurate record of ENG Form 3394, and report to the POC all accidents within 24 hours of the occurrence. All serious accidents (those resulting in death or injury requiring medical attention) shall be reported immediately. The Contractor shall maintain an OSHA Log of Work Related Injuries and Illnesses, OSHA Form 300. For property damage accidents of \$2,000 or more, the Contractor shall complete and submit to the COR a copy of ENG Form 3394 a fillable form will be provided to the contractor after award.

1.10. DAMAGE REPORTS

1.10.1. The contractor shall report to the POC all instances where Government materials, supplies, property, and/or equipment are damaged when damage occurs. When the damage was caused by Contract employees, a written report of the incident and extent of such damage shall be submitted to the POC, within 2 workdays (less weekends and holidays) of occurrence. For property damage accidents of \$2,000 or more the Contractor will complete and submit to the COR a copy of ENG 3394.

1.11 CONTRACTOR EMPLOYEES' CONDUCT AND COMPETENCY

1.11.1. All Contract employees shall conduct themselves in a proper and courteous manner at all times, since the majority of work is performed in the presence of the general public. Contract employees shall comply with all provisions of Title 36, Chapter III, Part 327, CFR and obey all posted signs and regulations in the performance of the services under this Contract.

1.12. DAMAGE OR LOSS OF CONTRACTOR'S SUPPLIES AND PROPERTY

1.12.1. The Contractor is responsible for taking the action necessary to protect Contractor supplies, materials and equipment, and the personal property of Contractor employees from loss, damage or theft. The Government assumes no responsibility for theft, damage, etc, of the above.

1.13. KEY PERSONNEL

1.13.1. The Contractor shall personally supervise the work or be readily available by phone or other means of communication to respond to any Contract issue that may arise when services are in progress. The Contractor Manager shall conduct overall management coordination and be the central point of contact with the Government for performance of all services under the Contract. The Contractor shall provide to the POC and COR the name and contact information of a Contract Manager and an Alternate Contract Manager, acting on behalf for the Contractor when the Contract Manager is absent, *no later than three (3) days after contract award*.

1.13.2. The Quality Control Inspectors (QCI) shall perform the Contractor's Quality Control Program and implementing the Contractor's Accident Prevention Plan. All QCIS shall have the authority to determine for the Contractor when completed services are ready for POC inspections.

1.13.3. Government or other applicable regulations that are applicable during the time spent on Government property management. The business owner or upper management shall have a minimum of 3 years' experience pesticide application, 3 years' experience managing such service, or a combination of both. Personnel performing pesticide application services shall be certified as an applicator in accordance with IL State Laws and the respective Departments of Agriculture

1.14. ENVIRONMENTAL PROGRAM

1.14.1. The Contractor shall comply with Federal, State, and local laws, regulations and standards regarding environmental protection. All environmental protection matters shall be coordinated with the COR.

1.14.2. The Contractor shall conduct all operations and maintenance activities in a manner to prevent contamination of Government land and property. The Contractor shall ensure all chemicals, materials, or any other hazardous substances are not spilled, leaked or disposed of on Government property and are disposed of in accordance with environmental regulations. If spills or contamination occur, the Contractor shall be responsible for cleanup and any associated costs in accordance with Federal, State and Local Law. Such spills shall be reported to the COR immediately.

1.15. MEETINGS

1.15.1. The Contractor shall attend any post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The Contracting Officer, POC, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the Contracting Officer will apprise the Contractor of how the Government views the Contractor's performance and the Contractor shall apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.16. QUALITY CONTROL

1.16.1. The Contractor shall have a Quality Control plan to ensure the requirements of the Contract are provided as specified. The primary purpose of Quality Control is to identify and correct deficiencies in the quality of services performed before the level of performance is unacceptable. The contractor's existing quality assurance system shall be utilized in accordance with Federal Acquisition Regulation (FAR) 12.208. The Contractor shall inform the POC of issues or potential issues that might affect the performance within *4 hours* of identifying those issues. Verbal reports shall be followed up by written reports within *24 hours*. The program shall include, but not be limited to the following:

- A chart showing the organizational structure and lines of authority, the names, qualifications, duties, responsibilities, and classification of each member of the Contractor's Quality Control Team
- An inspection system covering all the services stated in the Contract specifications.
- How the Contractor will monitor work to ensure performance complies with all deliverables (etc. timelines, deadlines, and goals).
- How the Contractor will monitor work to ensure performance complies with all specifications and requirements of the contract, including the contract's clauses
- How the Contractor will identify, investigate, and correct any non-conforming performance and prevent similar deficiencies in the future
- A file of all inspections conducted by the Contractor and the corrective actions taken. These files shall be made available for inspection upon request by the POC.
- A method of insuring that employees have full knowledge of performance assignments and that appropriate technical expertise is utilized with each performance assignment.
- A method of coordinating each crew's activities with the POC and/or inspector.

1.16.2. The Contractor shall submit to the POC within 30 days after award. If changes to this program occur, updated copies shall be provided to the POC.

1.17. INTERRUPTIONS

1.17.1. All performance that would necessitate an interruption of the use of the project or otherwise disrupt building occupants and/or the visiting public shall be fully coordinated and approved in advance by the POC. Interruptions shall be kept to an absolute minimum.

1.18. GOVERNMENT FURNISHED MATERIALS AND EQUIPMENT

1.18.1. Government Furnished Facilities. Suitable space will be provided for the Contractor's use for work performed under this Contract, as listed below. The Contractor shall maintain such space or grounds to the same, or higher standards, as similar areas occupied by the Government, and shall assume responsibility for the safekeeping of facilities provided. The Contractor shall not use those grounds or facilities as a place of habitation. Restroom facilities for Contract employees are the responsibility of the Contractor. The Contractor may elect to use public restroom facilities, unless closed.

1.18.2. Utilities. The Government has available for limited use some utilities for the contractor to perform the specified work. At remote locations the Contractor shall supply their own utilities such as water. The Contractor shall make a dedicated effort to conserve utilities and shall comply with all Government regulations regarding energy conservation. Government furnished utilities shall be used only in the performance of services specified in this Contract.

1.18.3. Forms. Department of Defense forms, required by the Government to be used under this Contract, are included as an appendix if not linked by the Government during the Contract period.

1.18.4. Control. The Government may provide the Contractor keys to allow access to certain secure areas or the Government will upon any secure areas to allow access for the Contractors. Upon completion or termination of the Contract the Contractor shall return all Government furnished equipment keys.

1.19. CONTRACTOR FURNISHED ITEMS

1.19.1. General. Except as described elsewhere in this Contract, the Contractor shall furnish all personnel, facilities, vehicles, tools, equipment, supplies, or materials necessary to accomplish all required services. All Contractor furnished tools, equipment, supplies, materials, or vehicles shall meet all applicable Federal.

1.19.2. Equipment. At the end of each section, an "Equipment List" is provided for Contractor reference. The equipment listed is not mandatory, nor necessarily complete. The Government requires, however, that the Contractor provide adequate equipment to perform the services required within the specified time period for each job. All equipment used by the Contractor must meet safety requirements outlined in the EM 385-1-1.

1.19.3. Service Vehicle. Contractor service vehicles used along project and public roads must be equipped with an orange rooftop revolving light, a rear mounted warning sign, and reflective tape on the rear bumper.

1.20. MINIMUM PERSONNEL QUALIFICATIONS

1.20.1. General. Employees, technical personnel, and consultants shall have the education, experience, or knowledge, as evidenced by license, certificate, or diploma, etc., to provide a comprehensive understanding of the systems and components to be serviced, operated, and maintained under this Contract. A commercial driver's license (CDL) will be required to operate certain large trucks, to pull trailers and operate other vehicles as required by the Commercial Vehicle Safety Act of 1986. Only properly trained and qualified employees shall be used in the performance of this Contract. All employees shall be subject to such

1.21. COOPERATION WITH OTHER CONTRACTORS, LESSEES, AND VOLUNTEERS

1.21.1. The Contractor shall fully cooperate with such other Contractors, lessees, volunteers and Government employees. The Contractor shall not commit or permit any act which will interfere with the performance of services by another Contractor, volunteer, lessee, or Government employee.

1.22. APPLICABLE PUBLICATIONS

1.22.1. The Contractor shall perform technical work in accordance with applicable publications. They include but are not limited to:

- MANUFACTURER'S RECOMMENDATIONS:
- Operating Manuals
- Repair Manuals
- Maintenance Manuals
- INDUSTRIAL STANDARDS AND CODES (Latest Editions):
- Underwriter's Laboratories, Inc.
- American National Standards Institute
- American Society for Testing and Materials
- Flat Glass Marketing Association
- OSHA Safety Standards

1.23. DEFINITIONS

Contracting Officer – means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) – As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. DoD Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: “Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer’s technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management.” In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing other surveillance support personnel to assist the COR when needed, “...These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs.”

Contractor – means a supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

Contractor-acquired Property - means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract and to which the Government has title.

Day – means, unless otherwise specified, a calendar day.

Defective Service – means a service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable – means anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

Government-furnished Property—As reflected in FAR 52.245-1, Government-furnished Property “means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract.

Government Property - means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

Property Administrator - means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

High Level Objective (HLO) – means a key overarching result-based objective for a project necessary to achieve the project’s vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

Physical Security – means that part of security concerned with physical measures designed to safeguard personnel; to prevent unauthorized access to equipment, installations, material, and documents; and to safeguard against espionage, sabotage, damage, and theft.

Point of Contact (POC) – means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions.

Quality Assurance – (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) – means the key Government-developed surveillance process document, and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control – means all necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement – means the specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on “what” is to be accomplished; however they are not prescriptive in describing “how” the outcome is to be achieved. Each HLO may have several statements to flesh out the areas necessary to meet the objective. Statements are similar to Level 3 in a Work Breakdown Structure.

Subcontractor – means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Work Day - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

1.24. FUTURE SERVICES

1.24.1. Option to Extend Services. The Government may require continued performance of any service within the limits at the rates specified in the Contract, the option provision may be exercised more than once. The Government may exercise the option by giving written notice to the Contractor before contract expiration.

1.24.2. Options to Extend the term of the Contract. The Government may extend the term of this Contract by giving written notice to the Contractor before Contract expiration.

1.25. PERFORMANCE PERIODS:

1.25.1. The various work items described in Work Performance Statements shall be completed by the following dates: Base: Date of Award to 23 September 2026

Option Year 1: 24 September 2026 through 23 September 2027

Option Year 2: 24 September 2027 through 23 September 2028

Option Year 3: 24 September 2028 through 23 September 2029

Option Year 4: 24 September 2029 through 23 September 2030

1.25.2. The Contractor will proceed NLT 15 days from the award of the Contract, with all preparations (submittal) necessary to begin the work items summarized in Sections 2 through 7.

1.26. FACILITY LOCATIONS AND ACCESS PROCEDURES

1.26.1. OLMSTED LOCKS & DAM – The Olmsted Locks & Dam is located at the mile marker 964.5 on the Ohio River in Olmsted, Illinois. The street address for the Olmsted Locks and Dam is 634 New Dam Road Olmsted, Illinois 62970. For access to the facility the Navigational Assistant can be contacted at 618-748-6413 or the Head Lock Operator at 618-748-6403

1.26.2 Site Visit - For bidding propose there will be a site visit at 1:00 pm on 18 September 2025.

1.27. INVOICE REQUIREMENTS

1.27.1 Contractor Invoice: The Contractor will provide an invoice upon the completion of the installation work that includes the following information:

- Contractor's name and address
- Contract Number
- Invoice number and date
- Itemized listing of services of work performed
- An invoice contact person
- Signature of Contractor or Contractor's representative
- Shall be addressed to:

Olmsted Locks & Dam
Attn: Wilhemina Cunningham
634 New Dam Rd.
Olmsted, IL 62970

Or emailed to: wilhemina.n.cunningham@usace.army.mil

SECTION 2 PORTABLE TOILET SERVICES

2.1. PERFORMANCE WORK

2.1.1. The contractor shall provide all labor, equipment, materials, and transportation necessary to clean, service, and maintain three (3) sling-mounted portable toilets on a weekly basis and must remain fully functional, sanitary, and compliant with applicable health and safety regulations.

2.2. REQUIRED PORTABLE TOILET SERVICE

2.2.1. Servicing Schedule - The contractor shall:

- Clean and sanitize the interior and exterior of each unit weekly.
- Pump and remove waste from holding tanks during each service.
- Restock supplies including toilet paper, hand sanitizer, and deodorizing agents.
- Inspect and report any damage or malfunction (e.g., broken latches, leaks).
- Maintain sling integrity and report any wear or safety concerns.
- Service schedule shall be once per week, unless otherwise directed.

2.2.2. Sling Mount Specifications- Heavy-duty sling frame for durability and rust resistance. Lifting capacity needs to support up to 1,000 pounds. Toilets must be in good working condition, free of leaks, and compliant with OSHA and local health standards.

2.2.3. Location- The portable toilets will be located in the fleet area. Site is within the Olmsted Locks & Dam facility. Specific address location and access procedures were summarized in paragraph 1.26.

2.2.4. Performance Standards-

Service Element	Standard
Cleaning & Waste Removal	100% of units cleaned and emptied weekly
Supply Restocking	Toilet paper and sanitizer fully stocked
Damage Reporting	Issues reported within 24 hours of discovery
Sling Inspection	Visual check performed during each visit

SECTION 3 POINTS OF CONTACT

3.1. POINT OF CONTACT (POC)

The POC for this project is Wilhemina Cunningham.

Wilhemina Cunningham
General Support Assistant
Olmsted Locks & Dam
634 New Dam Rd
Olmsted, IL 62970
Office 618-748-6412
wilhemina.n.cunningham@usace.army.mil

3.2. SITE ACCESS COORDINATION

The points of contact for scheduling availability and access the facility and fleet are:
Wilhemina Cunningham and Ezekiel Crim contact information are:

Wilhemina Cunningham
General Support Assistant
Olmsted Locks & Dam
634 New Dam Rd
Olmsted, IL 62970
Office 618-748-6412
wilhemina.n.cunningham@usace.army.mil

Ezekiel Crim
Navigational Assistant
Olmsted Locks & Dam
634 New Dam Rd
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